

# SENATE . . . . . No. 1282

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## The Commonwealth of Massachusetts

PRESENTED BY:

*John C. Velis*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to repeat violent firearm offenders.

PETITION OF:

NAME:

*John C. Velis*  
*Adam Gómez*

DISTRICT/ADDRESS:

*Hampden and Hampshire*  
*Hampden*

# SENATE . . . . . No. 1282

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By Mr. Velis, a petition (accompanied by bill, Senate, No. 1282) of John C. Velis and Adam Gomez for legislation relative to repeat violent firearm offenders. The Judiciary.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to repeat violent firearm offenders.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 276 of the General Laws is hereby amended by inserting after section 58B the  
2 following section:-

3           Section 58C. (a) A person who has been charged with a violent crime, as defined by  
4 section 121 of chapter 140, and who has been released after a hearing pursuant to sections 42A,  
5 58, 58A or 87, and who has subsequently been determined, after a hearing, by clear and  
6 convincing evidence, to have violated a condition of his release by committing any offense an  
7 element of which is the use or unlawful possession of a firearm, rifle, shotgun, machinegun or  
8 assault weapon, shall be deemed a danger to the safety of the community; and the judicial officer  
9 shall enter an order of revocation and detention.

10           (b) A person who has been charged with any offense an element of which is the use or  
11 unlawful possession of a firearm, rifle, shotgun, machinegun or assault weapon, and who has  
12 been released after a hearing pursuant to sections 42A, 58, 58A or 87, and who has subsequently

13 been determined, after a hearing, by clear and convincing evidence, to have violated a condition  
14 of his release by committing a violent crime, as defined by section 121 of chapter 140, shall be  
15 deemed a danger to the safety of the community; and the judicial officer shall enter an order of  
16 revocation and detention.

17 (c) A person who has been charged with any offense an element of which is the use or  
18 unlawful possession of a firearm, rifle, shotgun, machinegun or assault weapon, and who has  
19 been released after a hearing pursuant to sections 42A, 58, 58A or 87, and who has subsequently  
20 been determined, after a hearing, by clear and convincing evidence, to have violated a condition  
21 of his release by committing any offense an element of which is the use or unlawful possession  
22 of a firearm, rifle, shotgun, machinegun or assault weapon, shall be deemed a danger to the  
23 safety of the community; and the judicial officer shall enter an order of revocation and detention.

24 (d) A person detained under this section shall be brought to a trial as soon as reasonably  
25 possible, but in absence of good cause, the person so held shall not be detained for a period  
26 exceeding 120 days by the district court or for a period exceeding 180 days by the superior court  
27 excluding any period of delay as defined in Massachusetts Rules of Criminal Procedure Rule  
28 36(b)(2).